

Chhotey Lal v. State of U.P.

Allahabad High Court · Division Bench · 7 April 2016 · Writ-C No. 15643 of 2016 · **Writ disposed; relegated to clause 6.5(b); coercive action stayed.**

HEADNOTE

A consumer disputing the accuracy of an electricity bill, against whom recovery of outstanding dues has been initiated, must complain to the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 rather than have the High Court decide disputed facts in writ. The petition was disposed of with liberty to complain within one week, a direction to decide that complaint in accordance with law within two weeks, and a stay of coercive action on the recovery citation until disposal of the complaint.

FACTUAL SUMMARY

Chhotey Lal filed a writ petition in the Allahabad High Court challenging recovery proceedings started by the electricity corporation for outstanding dues. He contested the correctness of the bill on which the recovery citation was based. Counsel for the petitioner and for the corporation were heard. The Court treated the challenge as turning on disputed questions of fact and did not examine whether the bill or the recovery was correct on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy complaint as forum for disputed recovery

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides the complaint to the competent authority where a consumer disputes the accuracy of the bill. Because disputed questions of fact were involved and that remedy was available, the writ challenging recovery of outstanding dues was disposed of with liberty to complain under clause 6.5(b) within one week; the authority was directed to consider and pass orders in accordance with law within two weeks of the complaint; and no coercive action was to be taken on the recovery citation until disposal of that complaint under clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE MERITS OF THE RECOVERY CITATION

Treated as disputed questions of fact for the clause 6.5(b) complaint forum. ¶ 1